



File No.: EXP202202184

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 23, 2023, and based on the following

FACTS

FIRST: On June 23, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202202184, in which it was agreed to uphold for formal reasons the claim for the exercise of rights made by the appellant, previously the claimant, against BANCO CETELEM, S.A. (hereinafter the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on June 29, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant submitted a reconsideration appeal to this Spanish Agency for Data Protection, in which, in summary, it states that the requested right has not been sufficiently addressed and requests that its appeal be upheld and that a sanctioning file be opened against the respondent.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Regarding the statements made by the appellant, it should be noted that on July 27, 2023, this Agency forwarded the submitted appeal to the respondent so that, in light of the discrepancies presented by the appellant, it could provide clarifications if deemed appropriate.

The respondent has submitted allegations confirming what has already been stated throughout the procedure.

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III

Conclusion

Examining the reconsideration appeal submitted by the appellant, it does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

The appellant expresses dissatisfaction regarding the same facts already resolved in the resolution that upheld the claim for formal reasons, arguing that, although initially the response from the respondent was insufficient, it later demonstrated that it had addressed the requested right.

Therefore, after analyzing all the arguments presented, it is decided to dismiss this appeal.

IV

Late resolution

Due to reasons related to the functioning of the administrative body, which are not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common

Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the reconsideration appeal procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on June 23, 2023, in file EXP202202184.

SECOND: TO NOTIFY this resolution to A.A.A. and to BANCO CETELEM, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, an appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the

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Contentious-Administrative Jurisdiction, a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

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